

Child's Name:	Date of birth:	Age:
Parent's name <i>(if known)</i> :		
Parent's name <i>(if known)</i> :		
Parent's name <i>(if known)</i> :		

1. a. Hearing date: _____ Time: _____ Dept.: _____ Room: _____
 b. Judicial officer: _____
 c. Parties and attorneys present: _____
2. ☐ The court has read and considered the assessment prepared under Welf. & Inst. Code, §§ 361.5(g), 366.21(i), 366.22(c), 366.25(b), or 727.31(b) and the report and recommendation of the
 ☐ social worker ☐ probation officer ☐ and other evidence.
3. ☐ The court has considered the wishes of the child, consistent with the child's age, and all findings and orders of the court are made in the best interest of the child.

4. a. ☐ Notice has been given as required by law.

b. (1) ☐ The court has reviewed *Parental Notification of Indian Status* (form ICWA-020), evidence taken at earlier hearings, and reports and evidence filed by the agency. The court finds that the court and the agency have fulfilled their affirmative and ongoing duty of inquiry to determine whether the child is or may be an Indian child, including interviewing available extended family members, and that there is no reason to believe or know that the child is or may be an Indian child.

(2) ☐ This case involves an Indian child, and the court finds that notice has been given to the parents, Indian custodian, Indian child's tribe, and the Bureau of Indian Affairs (BIA) in accordance with Welf. & Inst. Code, § 224.3; the original certified mail receipts, return cards, copies of all notices, and any responses to those notices are in the court file.



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5. ☐ For a child 10 years of age or older who is not present,
- ☐ the child was properly notified of the right to attend the hearing under Welf. & Inst. Code, § 349(d) and was given an opportunity to be present, and there is no good cause for a continuance to enable the child to be present.
 - ☐ the child was not properly notified of the right to attend the hearing under Welf. & Inst. Code, § 349(d), or the child wished to be present and was not given an opportunity to be present, and
 - ☐ there is good cause for a continuance for a period of time necessary to provide notice and secure the presence of the child to enable the child to be present.
 - ☐ it is in the best interest of the child not to continue the hearing.
6. ☐ The court takes judicial notice of all prior findings, orders, and judgments in this proceeding.
7. ☐ The court previously made an order denying or terminating reunification services, under Welf. & Inst. Code, §§ 361.5, 366.21, 366.22, 366.25, 727.2, or 727.3, for
- ☐ parent (name):
- ☐ parent (name):
- ☐ parent (name):
8. a. ☐ The court finds, by clear and convincing evidence, that it is likely the child will be adopted.
- b. ☐ The child is an Indian child or ☐ there is reason to know that the child is an Indian child, and
- ☐ the court has heard and considered all relevant, admissible evidence, including
 - ☐ qualified expert witness testimony provided by (name of witnesses) and
 - ☐ evidence regarding the prevailing social and cultural practices of the child's tribe; and
 - ☐ the court finds beyond a reasonable doubt that continued physical custody by the ☐ mother ☐ father ☐ Indian custodian ☐ Other (name and relationship to child): ☐ Other (name and relationship to child): is likely to result in serious emotional or physical damage to the child.
9. The parental rights of
- ☐ parent (name):
 - ☐ parent (name):
 - ☐ parent (name):
 - ☐ alleged fathers (names):
 - ☐ unknown mother ☐ all unknown fathers
- are terminated, adoption is the child's permanent plan, and the child is referred to the California Department of Social Services or a local licensed adoption agency for adoptive placement.
- f. **The adoption is likely to be finalized by (date):**
(If item 9 is completed, skip items 10–18 and go directly to item 19.)
10. This case involves an Indian child. The parental rights of
- ☐ parent (name):
 - ☐ parent (name):
 - ☐ parent (name):
 - ☐ Indian custodians (names):
 - ☐ alleged fathers (names):
 - ☐ unknown mother ☐ all unknown fathers
- are modified in accordance with the tribal customary adoption order of the (specify): _____ tribe, dated _____ and comprising _____ pages, which is accorded full faith and credit and fully incorporated herein. The child is referred to the California Department of Social Services or a local licensed adoption agency for tribal customary adoptive placement in accordance with the tribal customary adoption order.
(If item 10 is completed, skip items 11–18 and go directly to item 19.)



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11. ☐ The child is living with a relative who is unable or unwilling to adopt the child because of circumstances that do not include an unwillingness to accept legal or financial responsibility for the child, but who is willing and capable of giving the child a stable and permanent home through legal guardianship. Removal of the child from the custody of this relative would be detrimental to the child's emotional well-being. *(If item 11 is checked, skip items 12–14 and go directly to item 15 (guardianship).)*
12. ☐ Termination of parental rights would be detrimental to the child for the following reasons: *(If item 12 is checked, check the applicable reasons below, skip items 13–14, and go directly to item 15 (guardianship), 16 (permanent placement with a relative) or 17 (continued foster care).)*
- a. ☐ The parents or guardians have maintained regular visitation and contact with the child, and the child would benefit from continuing the relationship.
 - b. ☐ The child is 12 years of age or older and objects to termination of parental rights.
 - c. ☐ The child is placed in a residential treatment facility, adoption is unlikely or undesirable, and continuation of parental rights will not prevent a permanent family placement if the parents cannot resume custody when residential care is no longer needed.
 - d. ☐ The child is living with a foster parent or Indian custodian who is unable or unwilling to adopt the child because of exceptional circumstances that do not include an unwillingness to accept legal or financial responsibility for the child, but who is willing and capable of providing the child with a stable and permanent environment. Removal of the child from the physical custody of the foster parent or Indian custodian would be detrimental to the emotional well-being of the child.
NOTE: Do not check item 12d if the child is either
 - (1) under the age of 6; or
 - (2) a member of a sibling group, at least one member of which is under the age of 6, that is or should be placed together.
 - e. ☐ There would be substantial interference with the child's sibling relationship.
 - f. ☐ The child is an Indian child, and there are compelling reasons for determining that termination of parental rights would not be in the best interest of the child, including, but not limited to the following:
 - (1) Termination of parental rights would substantially interfere with the child's connection to the tribal community or the child's tribal membership rights.
 - (2) The child's tribe has identified guardianship or another permanent plan for the child.
13. ☐ Termination of parental rights would not be detrimental to the child, but the child is difficult to place for adoption and there is no identified or available prospective adoptive parent for the child because the child *(check the applicable reason or reasons below and complete item 14)*
- a. ☐ is a member of a sibling group that should stay together.
 - b. ☐ has a diagnosed medical, physical, or mental disability.
 - c. ☐ is 7 years of age or older.
14. a. ☐ Termination of parental rights is not ordered at this time. Adoption is the permanent plan, and efforts are to be made to locate an appropriate adoptive family. A report to the court is due by *(date, not to exceed 180 days from the date of this order)*:
(Do not check item 14a for a tribal customary adoption. If item 14a is checked, provide for visitation in items 14b and 14c, as appropriate, skip items 15–18, and go directly to item 19.)
- b. ☐ Visitation between the child and
- (1) ☐ parent *(name)*:
 - (2) ☐ parent *(name)*:
 - (3) ☐ legal guardian *(name)*:
 - (4) ☐ other *(name)*:
- is scheduled as follows *(specify)*:



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14. c. ☐ Visitation between the child and *(names)*:
is detrimental to the child's physical or emotional well-being and is terminated.
15. ☐ The child's permanent plan is legal guardianship.
☐ *(Name)*:
is appointed guardian of the child's person ☐ and estate. The clerk is ordered to issue *Letters of Guardianship* once the appointed guardian has signed the required oath or affirmation. This appointment is not effective until the *Letters* have issued.
(Do not check item 15 for a tribal customary adoption. If item 15 is checked, provide for visitation in items 15a and 15b, as appropriate, complete item 15c or 15d, then skip item 16–18 and go directly to item 19.)
- a. ☐ Visitation between the child and
- (1) ☐ parent *(name)*:
 - (2) ☐ parent *(name)*:
 - (3) ☐ legal guardian *(name)*:
 - (4) ☐ other *(name)*:
is scheduled as follows *(specify)*:
- b. ☐ Visitation between the child and *(names)*:
is detrimental to the child's physical or emotional well-being and is terminated.
- c. ☐ Dependency ☐ Wardship jurisdiction is terminated.
(If the child is a dependent and the appointed guardian is a relative or nonrelative extended family member whose home has been approved as a resource family home for at least six months, the court must terminate dependency unless the guardian objects or the court makes a finding of exceptional circumstances.)
- The juvenile court retains jurisdiction over the guardianship under Welf. & Inst. Code, § 366.4 or § 728(e).
- d. ☐ Dependency ☐ Wardship jurisdiction is not terminated. Dependency or wardship jurisdiction is likely to be terminated by *(date)*: .
16. ☐ The child's permanent plan is permanent placement with *(name)*: , a fit and willing relative,
subject to the periodic review of the juvenile court under Welf. & Inst. Code, § 366.3 or § 727.2.
The likely date by which the child's permanent plan will be achieved is *(specify date)*:
(If item 16 is checked, skip item 17, provide for visitation in item 18, as appropriate, and go to item 19.)
17. ☐ The child remains placed in foster care with *(name of placement)*:
- a. ☐ with a permanent plan of *(check one)*:
- (1) ☐ returning home.
 - (2) ☐ adoption.
 - (3) ☐ tribal customary adoption.
 - (4) ☐ legal guardianship.
 - (5) ☐ placement with a fit and willing relative.
- b. ☐ The child is 16 years of age or older and no other permanent plan is appropriate at this time. The child is ordered placed in another planned permanent living arrangement with ongoing and intensive efforts to
- ☐ return home.
☐ place for adoption.
☐ Other *(specify)*:

☐ establish a legal guardianship.
☐ place with a fit and willing relative.



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17. c. The barriers to achieving the permanent plan in items 17a and 17b are:

d. The child, if 10 years of age or older, has identified the following individuals, other than the child's siblings, who are important to the child (*specify*):

e. **The child's permanent plan is likely to be achieved by (date):**

(If item 17 is checked, provide for visitation in item 18, as appropriate, and go to item 19.)

18. The child is permanently placed with a relative or remains placed in foster care (if item 16 or 17 is checked).

a. ☐ Visitation between the child and

(1) ☐ parent (*name*):

(2) ☐ parent (*name*):

(3) ☐ legal guardian (*name*):

(4) ☐ other (*name*):

is scheduled as follows (*specify*):

b. ☐ Visitation between the child and (*names*):

is detrimental to the child's physical or emotional well-being and is terminated.

19. ☐ The child is an Indian child. The court finds that the child's permanent plan complies with the placement preferences because

a. ☐ the permanent plan is not adoption, and (*check one*):

(1) ☐ the child is placed with a member of the child's extended family, as defined by Welf. & Inst. Code, § 224.1(c); or

(2) ☐ a diligent search was made for a placement with a member of the child's extended family, the efforts are documented in detail in the record, and the child is placed in a foster home licensed, approved, or specified by the Indian child's tribe; or

(3) ☐ a diligent search was made for a placement with a member of the child's extended family or in a foster home licensed, approved, or specified by the Indian child's tribe; the efforts are documented in detail in the record; and the child is placed in an Indian foster home licensed or approved by an authorized non-Indian licensing authority; or

(4) ☐ a diligent search was made for a placement with a member of the child's extended family, in a foster home licensed, approved, or specified by the Indian child's tribe, or in an Indian foster home licensed or approved by an authorized non-Indian licensing authority; the efforts are documented in detail in the record; and the child is placed in an institution for children approved by an Indian tribe or operated by an Indian organization that has a program suitable to meet the Indian child's needs; or

(5) ☐ the child is placed in accordance with the preferences established by the tribe; or

(6) ☐ the court finds by clear and convincing evidence that there is good cause to depart from the placement preferences based on the reasons set out in the record.

b. ☐ the permanent plan is adoption, and (*check one*):

(1) ☐ the child is placed with a member of the child's extended family; or

(2) ☐ a diligent search was made for a placement with a member of the child's extended family, those efforts are documented in detail in the record, and the child is placed with other members of the child's tribe; or

(3) ☐ a diligent search was made for a placement with a member of the child's extended family or other member of the child's tribe, those efforts are documented in detail in the record, and the child is placed with another Indian family; or

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19. b. (4) ☐ the child is placed in accordance with the preferences established by the tribe; or
 (5) ☐ the court finds by clear and convincing evidence that there is good cause to depart from the placement preferences based on the reasons set out in the record.
20. ☐ The child's placement is necessary.
21. ☐ The child's placement is appropriate.
22. ☐ For a child placed in a short-term residential therapeutic program or community treatment facility, the court has considered the evidence and documentation submitted under Welf. & Inst. Code, § 366.1(m) when determining the continuing necessity for and appropriateness of the placement.
23. ☐ The child is missing or has run away from placement. Out-of-home placement continues to be necessary. The placement ☐ was ☐ was not appropriate. The county agency ☐ has ☐ has not made reasonable efforts to locate the child.
24. ☐ The child is currently detained in juvenile hall. Out-of-home placement continues to be necessary. The placement ☐ was ☐ was not appropriate.
25. ☐ The agency has complied with the case plan by making reasonable efforts, including whatever steps are necessary to finalize the permanent plan.
26. ☐ The child is an Indian child, and active efforts, as detailed in the record, ☐ were ☐ were not made to provide remedial services and rehabilitative programs designed to prevent the breakup of the Indian family.
 If active efforts were made, those efforts have proved ☐ successful ☐ unsuccessful.
27. The child is 14 years of age or older, and
- ☐ the services stated in the case plan include those needed to assist the child in making the transition from foster care to successful adulthood.
 - ☐ the services stated in the case plan do not include those needed to assist the child in making the transition from foster care to successful adulthood.
 - ☐ to assist the child in making the transition to successful adulthood, the county agency must add to the case plan and provide the services
 - ☐ stated on the record.
 - ☐ as follows:
28. ☐ The child remains a ☐ dependent ☐ ward of the court. *(Do NOT check this item if item 15c is checked.)*
29. ☐ All prior orders not in conflict with this order remain in full force and effect.
30. ☐ Other *(specify)*:



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31. ☐ Next hearing date: _____ Time: _____ Dept.: _____ Room: _____
- a. ☐ Continued hearing under Welf. & Inst. Code, § 366.26 for receipt of report on attempts to locate an appropriate adoptive family
- b. ☐ Continued hearing under Welf. & Inst. Code, § 366.24(c)(6) for receipt of the tribal customary adoption order
- c. ☐ Six-month postpermanency review
- d. ☐ Other (*specify*): _____

32. The

- a. ☐ parent (*name*): _____
- b. ☐ parent (*name*): _____
- c. ☐ parent (*name*): _____
- d. ☐ Indian custodian (*name*): _____
- e. ☐ child
- f. ☐ Other (*name*): _____
- g. ☐ Other (*name*): _____

have been advised of their appeal rights under California Rules of Court, rule 5.590.

Date: _____

JUDICIAL OFFICER